

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

9. JOANNE LYNN RUGGERI V. CHRISTOPHER P. RUGGERI

24FL1183

On March 11, 2026, the parties appeared before the court for a long cause trial. The parties reached agreements on all issues and agreed to set a review hearing for the present date.

Neither party has filed a supplemental declaration therefore, the court surmises there are no issues to bring before it and the review hearing is no longer needed.

The matter is dropped from calendar. All prior orders remain in full force and effect.

TENTATIVE RULING #9: THE MATTER IS DROPPED FROM CALENDAR AS NO SUPPLEMENTAL DECLARATIONS HAVE BEEN FILED. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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10. CORAL STRICLER V. SCOTT STRICLER

25FL1201

On March 6, 2026, Respondent filed a Request for Order (RFO) seeking to set aside his default and requesting leave to file his Response to the Petition. He filed a Memorandum of Points and Authorities concurrently therewith. All required documents, with the exception of an FL-320 were served on March 10th.

Petitioner filed and served a Responsive Declaration to Request for Order on May 15, 2026.

The Reply Declaration of Attorney Homami was filed and served on June 3, 2026.

Respondent asks the court to set aside his default entered on January 28, 2026 and grant him leave to file his Response to the Petition for Dissolution of Marriage. He states that he was of the belief that the parties were negotiating the terms of the divorce and would potentially be filing a stipulated agreement for an uncontested Judgment. When the parties were unable to reach an agreement, Petitioner filed for his default. The proposed Response to the Petition is attached as Exhibit B to the RFO.

Petitioner opposes the motion and argues that the parties were not working towards a resolution and Respondent has no reason to believe he was not required to file a timely Response. She argues that granting the set aside would subject her to “unnecessary delay” and “additional burden” but she does not elaborate or provide any factual basis for these claims.

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” Cal. Civ. Pro. § 473(b). To obtain relief under Section 473(b), the moving party must do so within a reasonable time, but in no case exceeding 6 months after the date of the judgment and must provide a copy of the pleading proposed to be filed. *Id.*

Where, as here, alleged mistake and excusable neglect gives rise to the default, the court must determine whether a mistake or negligence is grounds to set aside a default judgment under Section 473(b). Generally, a pro per is held to the same standard as a practicing attorney. Goodson v. Bogerts, Inc., 252 Cal. App. 2d 32, 40 (1967) While the court is not to give deference to a party simply because that party was acting in pro per, the court is to resolve any doubts as to a showing of mistake, inadvertence, surprise, or excusable neglect in favor of the moving party. Elston v. City of Turlock, 38 Cal. 3d 227, 233 (1985)